

HOUSE BILL No. 1051

DIGEST OF INTRODUCED BILL

Citations Affected: IC 24-5-23.8.

Synopsis: Exclusion of medical debt from credit scoring. Prohibits a health care provider from reporting or furnishing to a consumer reporting agency any information related to health care debt owed or alleged to be owed by a consumer who resides in Indiana. Requires a health care provider to include in any contract entered into with a third party furnisher a provision that prohibits the reporting or furnishing to a consumer reporting agency any information related to health care debt owed or alleged to be owed by a consumer, including information concerning any delinquent account action taken with respect to health care debt. Prohibits a consumer reporting agency from recording or retaining in the file of a consumer any information that is: (1) related to health care debt incurred or alleged to be incurred by the consumer; and (2) reported to the consumer reporting agency after June 30, 2026. Provides that if a consumer reporting agency receives a request from a consumer to delete any record of health care debt maintained in the file of the consumer, the consumer reporting agency shall, not later than five business days after receiving the request, take all lawful and reasonable actions to delete from the consumer's file the record of the health care debt, regardless of when the health care debt was reported to the consumer reporting agency. Provides that a person who violates the provisions of this act commits a deceptive act.

Effective: July 1, 2026.

Summers

December 5, 2025, read first time and referred to Committee on Financial Institutions.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1051

A BILL FOR AN ACT to amend the Indiana Code concerning trade regulation.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 24-5-23.8 IS ADDED TO THE INDIANA CODE
- 2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
- 3 JULY 1, 2026]:
- 4 **Chapter 23.8. Health Care Debt Reporting**
- 5 **Sec. 1. As used in this chapter, "affiliate" means any person who**
- 6 **directly or indirectly:**
- 7 **(1) controls;**
- 8 **(2) is controlled by; or**
- 9 **(3) is under the common control of;**
- 10 **another person.**
- 11 **Sec. 2. (a) As used in this chapter, "consumer" means an**
- 12 **individual whose principal residence is in Indiana.**
- 13 **(b) The term includes the following:**
- 14 **(1) A protected consumer (as defined in IC 24-5-24.5-4).**
- 15 **(2) A representative acting on behalf of a protected consumer**
- 16 **(as defined in IC 24-5-24.5-4).**
- 17 **Sec. 3. As used in this chapter, "consumer report" means any**



1 written, oral, or other communication of any information that:

- 2 (1) is made by a consumer reporting agency;
- 3 (2) bears on a consumer's creditworthiness, credit standing,
- 4 credit capacity, character, general reputation, personal
- 5 characteristics, or mode of living; and
- 6 (3) is used or expected to be used or collected in whole or in
- 7 part for the purpose of serving as a factor in establishing a
- 8 consumer's eligibility for:

9 (A) credit or insurance to be used primarily for personal,

10 family, or household purposes;

11 (B) employment purposes; or

12 (C) any other purpose authorized under Section 604 of the

13 federal Fair Credit Reporting Act (15 U.S.C. 1681b).

14 Sec. 4. (a) As used in this chapter, "consumer reporting agency"

15 means any person that, for monetary fees or dues, or on a

16 cooperative nonprofit basis, regularly engages in whole or in part

17 in the practice of assembling or evaluating consumer credit

18 information or other information on consumers for the purpose of

19 furnishing a consumer report to third parties.

20 (b) The term does not include an entity designated as a

21 commercially reasonable private consumer credit reporting entity

22 under IC 24-4.5-7-404(5).

23 Sec. 5. As used in this chapter, "delinquent account action",

24 with respect to a consumer's delinquent account with a health care

25 provider, means any action taken to initiate, or in furtherance of:

- 26 (1) placing the customer's account for collection;
- 27 (2) charging the customer's account to profit or loss; or
- 28 (3) subjecting the customer's account to any similar action;

29 whether taken through the health care provider's own actions or

30 those of a third party furnisher.

31 Sec. 6. As used in this chapter, "file", when used in connection

32 with information on a consumer, means all the information on that

33 consumer that is recorded and retained by a consumer reporting

34 agency, regardless of how the information is stored.

35 Sec. 7. (a) As used in this chapter, "health care debt" means an

36 obligation or an alleged obligation of a consumer to pay an amount

37 related to the receipt of health care services, products, or devices

38 provided to a person by a health care provider.

39 (b) The term does not include debt charged to a credit card

40 unless the credit card is issued under:

- 41 (1) an open-end plan; or
- 42 (2) a closed-end plan;



1 offered specifically for the payment of health care services,
2 products, or devices provided to a person.

3 Sec. 8. As used in this chapter, "health care provider" means:

- 4 (1) a hospital or facility listed in IC 16-39-7-1(a)(13); or
5 (2) a provider of ambulance services (as defined in
6 IC 16-18-2-13.4).

7 The term includes an affiliate, officer, agent, or employee of a
8 person described in subdivision (1) or (2).

9 Sec. 9. (a) As used in this chapter, "third party furnisher"
10 means a person that regularly and in the ordinary course of
11 business furnishes to one (1) or more consumer reporting agencies
12 information about the transactions and experiences of one (1) or
13 more health care providers with one (1) or more consumers,
14 including information regarding delinquent account actions,
15 regardless of whether the delinquent account actions were taken
16 by:

- 17 (1) the person;
18 (2) the health care provider on whose behalf the person
19 furnishes the information; or
20 (3) any other person.

21 (b) The term includes a collection agency (as defined in
22 IC 25-11-1-1) that regularly and in the ordinary course of business
23 engages in the activities described in subsection (a).

24 (c) The term includes an affiliate, officer, agent, or employee of
25 a person described in subsection (a) or (b).

26 Sec. 10. After June 30, 2026, a health care provider:

- 27 (1) shall not report or furnish to a consumer reporting agency
28 any information related to health care debt owed or alleged to
29 be owed by a consumer; and
30 (2) shall include in any contract or agreement entered into
31 with a third party furnisher a provision that prohibits the
32 reporting or furnishing to a consumer reporting agency any
33 information related to health care debt owed or alleged to be
34 owed by a consumer, including information concerning any
35 delinquent account action taken with respect to health care
36 debt owed or alleged to be owed by a consumer.

37 Sec. 11. (a) Subject to subsection (b), a consumer reporting
38 agency shall not record or retain in the file of a consumer any
39 information that is:

- 40 (1) related to health care debt incurred or alleged to be
41 incurred by the consumer; and
42 (2) reported or furnished to the consumer reporting agency



1 after June 30, 2026.

2 (b) If a consumer reporting agency receives a request from a
3 consumer to delete any record of health care debt maintained in
4 the file of the consumer, the consumer reporting agency shall, not
5 later than five (5) business days after receiving the request, take all
6 lawful and reasonable actions to delete, or cause to be deleted,
7 from the consumer's file the record of the health care debt,
8 regardless of when the health care debt was reported or furnished
9 to the consumer reporting agency. A consumer reporting agency
10 may:

11 (1) prescribe the form and manner in which a consumer must
12 submit to the consumer reporting agency a request under this
13 subsection; and

14 (2) require the consumer to furnish proper identification in
15 connection with submitting the request.

16 A consumer reporting agency may not impose any fee or other
17 charge on any consumer in connection with fulfilling a request
18 submitted under this subsection.

19 Sec. 12. A person who violates section 10 or 11 of this chapter
20 commits a deceptive act that is actionable under IC 24-5-0.5 only
21 by the attorney general under IC 24-5-0.5-4(c).

